

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 19-004

Adding Title 8, Chapter 11, Ballot Questions - Rules and Procedures

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has reviewed Title 8 of the Chickasaw Nation Code and finds it necessary to amend said Title by adding a Chapter 11 which outlines the rules and procedures for adding questions or referendums to tribal voting ballots.

NOW THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves the following amendments to Title 8 by amending the definition Section 8-102 with the addition of the following term, and renumbering where necessary, and adding a Chapter 11 to said Title of the Chickasaw Nation Code as follows. All other Sections of Title 8 are not affected by this resolution.

SECTION 8-102 DEFINITIONS.

Ballot Question or Referendum: An inquiry, passed by resolution, which asks a specific question to be placed on the ballot and sets forth possible answers to be chosen by registered Chickasaw voters.

**CHAPTER 11
BALLOT QUESTIONS - RULES AND PROCEDURES**

SECTION 8-1101 PURPOSE.

From time to time it may be necessary or appropriate to put questions or issues of national importance on a ballot in order to solicit input from all the voters of the Chickasaw Nation. These provisions are meant to facilitate the process by placing that question or issue on the ballot.

SECTION 8-1102 INTENDED SCOPE.

An appropriate subject for such a referendum or ballot question would be an issue of such importance to the Nation that the elected officials would want direct input from citizens on a nationwide basis before proceeding on the issue and related decisions.

August 17, 2001

SECTION 8-1103 REQUIREMENTS FOR ITEMS TO APPEAR ON BALLOT.

A. In order for such a ballot question to appear on a ballot, the following criteria must be met:

1. A resolution must be presented to or by the Legislature specifically identifying, in precise language, the question or questions to be asked, and
2. The resolution must be adopted by at least nine (9) affirmative votes and concurred with by the Governor.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on November 16, 2001, by a vote of 9 ayes, 4 nays, 0 abstentions.

Wanda Scott

Chairperson
Chickasaw Tribal Legislature

Heaven McManus

Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date: NOV 16 2001

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Permanent Resolution Number 19-004

Adding Title 8, Chapter 11, Ballot Questions - Rules and Procedures

Explanation: It may be necessary or appropriate to put questions or issues of national importance on a ballot in order to solicit input from all voters of the Chickasaw Nation. This resolution adds new sections to Title 8, Elections & Campaigns by providing rules and procedures for adding such questions or referendums to tribal voting ballots.

Requested By: Judy Goforth Parker, Legislator

Presented By: Wanda Blackwood Scott
Chairman Pro Tempore
Legislative Committee